

IN THE COURT OF COMMON PLEAS OF ALLEGHENY COUNTY, PENNSYLVANIA

MARIA MOLLURA, Individually and as
ADMINISTRATRIX OF THE ESTATE
OF JOSEPH MOLLURA, Deceased,

Plaintiff,

vs.

PENNSYLVANIA DEPARTMENT OF
CORRECTIONS t/d/b/a THE STATE
CORRECTIONAL INSTITUTE OF
PITTSBURGH a/k/a SCI PITTSBURGH;
and CAPITAL TECHNOLOGIES, INC.,

Defendants.

~~CIVIL ACTION—MEDICAL~~
PROFESSIONAL LIABILITY ACTION

Case No: G.D. - 17 - 6868

Code: _____

**PLAINTIFF'S COMPLAINT IN
CIVIL ACTION**

Filed on behalf of Plaintiff:
MARIA MOLLURA, Individually and as
ADMINISTRATRIX OF THE ESTATE
OF JOSEPH MOLLURA, Deceased

Counsel of Record for Plaintiffs:

NEIL R. ROSEN, ESQUIRE
Pa. I.D. #23619

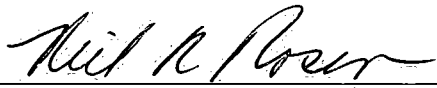
ROSEN LOUIK & PERRY, P.C.
Firm #020

The Frick Building, Suite 200
437 Grant Street
Pittsburgh, PA 15219

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TO THE WITHIN-NAMED DEFENDANT:

YOU ARE HEREBY NOTIFIED TO FILE A
WRITTEN RESPONSE TO THE ENCLOSED
COMPLAINT WITHIN TWENTY (20) DAYS
FROM SERVICE HEREOF OR A JUDGMENT
MAY BE ENTERED AGAINST YOU.


Attorneys for Plaintiffs

JURY TRIAL DEMANDED

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GD-17-006868

COMPLAINT IN A CIVIL ACTION

NOTICE TO DEFEND

You have been sued in Court. If you wish to defend against the claims set forth in the following pages, you must take action within twenty (20) days after this Complaint and Notice are served by entering a written appearance personally or by attorney and filing in writing with the Court your defenses or objections to the claims set forth against you. You are warned that if you fail to do so the case may proceed without you and a judgment may be entered against you by the Court without further notice for any money claimed in the Complaint and for any claim or relief requested by the Plaintiff. You may lose money or property or other rights important to you.

YOU SHOULD TAKE THIS PAPER TO YOUR LAWYER AT ONCE. IF YOU DO NOT HAVE OR KNOW A LAWYER, OR CANNOT AFFORD ONE, THEN YOU SHOULD GO TO OR TELEPHONE THE OFFICE SET FORTH BELOW TO FIND OUT WHERE YOU CAN GET LEGAL HELP. THIS OFFICE CAN PROVIDE YOU WITH INFORMATION ABOUT HIRING A LAWYER. IF YOU CANNOT AFFORD TO HIRE A LAWYER, THIS OFFICE MAY BE ABLE TO PROVIDE YOU WITH INFORMATION ABOUT AGENCIES THAT MAY OFFER LEGAL SERVICES TO ELIGIBLE PERSONS AT A REDUCED FEE OR NO FEE:

**Lawyer Referral Service
Allegheny County Bar Association
400 Koppers Building
436 7th Avenue, 3rd Floor
Pittsburgh, PA 15219
(412)261-5555**

IN THE COURT OF COMMON PLEAS OF ALLEGHENY COUNTY, PENNSYLVANIA

MARIA MOLLURA, Individually and as	)	CIVIL ACTION—MEDICAL
ADMINISTRATRIX OF THE ESTATE	)	PROFESSIONAL LIABILITY ACTION
OF JOSEPH MOLLURA, Deceased,	)	
	)	Case No: G.D. _____
Plaintiff,	)	
	)	
vs.	)	
	)	
PENNSYLVANIA DEPARTMENT OF	)	
CORRECTIONS t/d/b/a THE STATE	)	
CORRECTIONAL INSTITUTE OF	)	
PITTSBURGH a/k/a SCI PITTSBURGH;	)	
and CAPITAL TECHNOLOGIES, INC.,	)	
	)	
Defendants.	)	

PLAINTIFF'S COMPLAINT IN CIVIL ACTION

AND NOW, comes the Plaintiff, by and through her attorneys, Neil R. Rosen, Esquire, Andrew G. Rothey, Esquire, and Rosen Louik & Perry, P.C., and aver the following:

1. MARIA MOLLURA, Plaintiff herein (hereinafter referred to as "Plaintiff") is and was at all times relevant to the matters set forth in this Complaint an adult individual residing in Allegheny County, Pennsylvania.

2. On August 30, 2016, Plaintiff was duly appointed Administratrix of the Estate of JOSEPH MOLLURA, Deceased, by the Register of Wills of Allegheny County, Pennsylvania. Maria Mollura is and was, at all times material to this cause of action, the wife of Joseph Mollura.

3. During his life, Plaintiff's decedent Joseph Mollura (hereinafter referred to as "Dr. Mollura") was a physician duly licensed to practice medicine in the Commonwealth of Pennsylvania. At all times relevant to the matters set forth in this Complaint, Dr. Mollura was working at SCI Pittsburgh.

4. The PENNSYLVANIA DEPARTMENT OF CORRECTIONS t/d/b/a THE STATE CORRECTIONAL INSTITUTE AT PITTSBURGH a/k/a SCI PITTSBURGH, Defendant herein (hereinafter referred to as "Defendant DOC") is a department, agency, and/or legal entity of the Commonwealth of Pennsylvania, which regularly conducts business in Allegheny County, specifically in owning, operating, managing, maintaining, and/or having under its direct supervision and control a state prison known as the State Correctional Institute at Pittsburgh ("SCI Pittsburgh") located at 3001 Beaver Avenue, Pittsburgh, Pennsylvania 15233.

5. At all times relevant to the matters set forth in this Complaint, Defendant DOC was acting by and through its agents, ostensible agents, servants and/or employees, all of whom were acting within the course and scope of their employment.

6. CAPITAL TECHNOLOGIES, INC., Defendant herein (hereinafter referred to as "Defendant CTI"), is a corporation, business, association or other entity chartered and existing under the laws of the Commonwealth of Pennsylvania with a principle place of business located at 687 O'Neil Boulevard, Suite 201, McKeesport, Pennsylvania 15132.

7. At all times relevant to the matters set forth in this Complaint, Defendant CTI was acting by and through its agents, ostensible agents, servants and/or employees, all of whom were acting within the course and scope of their employment.

8. At all times relevant to the matters set forth in this Complaint, Defendant CTI was engaged in the business, practice, and/or professional specialty of providing water treatment services to public and private entities.

9. At all times relevant to the matters set forth in this Complaint, Defendant CTI had contracted, orally and/or in writing, with Defendant DOC to provide water treatment services, such as water testing, water remediation, water system analysis, water system installation,

maintenance, and repair, and water system recommendations, to Defendant DOC in relation to the water system and air-conditioning system at SCI Pittsburgh and were responsible for ensuring that said systems did not become infested with *Legionella pneumophila*.

10. Before and in May of 2016, water testing at SCI Pittsburgh revealed the presence of *Legionella pneumophila* in the water system, specifically in a location known as "Cooling Tower 1." Subsequent testing in July of 2016 and August of 2016 also revealed the presence of *Legionella pneumophila* in Cooling Tower 1. These results were communicated to, and known by, Defendant DOC and Defendant CTI.

11. Cooling Tower 1 is a permanent fixture of the real property of SCI Pittsburgh and was intended to remain permanently affixed to said real property.

12. Cooling Tower 1 is adjacent to, in close proximity with, and/or serves the medical department of SCI Pittsburgh, wherein Dr. Mollura was physically present during his regular work schedule.

13. Defendant CTI evaluated the water system at SCI Pittsburgh on multiple occasions before and in May, June, July, and August of 2016.

14. During said evaluations, Defendant CTI had actual knowledge that the water system at SCI Pittsburgh, including Cooling Tower 1, was infested and/or colonized by *Legionella pneumophila*.

15. During said evaluations, Defendant CTI had actual knowledge that the attempts to remediate the infestation were failing and/or were insufficient to eradicate the infestation.

16. During said evaluations, Defendant CTI had actual knowledge that the water system, including but not limited to its valves, pumps, switches, and pipes, was defective, malfunctioning, and/or inoperative in terms of its ability to prevent the colonization of bacteria

and/or to effectuate the remediation and eradication of bacteria already present, including *Legionella pneumophila*.

17. Defendant CTI timely communicated the information in the preceding paragraphs to Defendant DOC by way of written service reports, providing Defendant DOC with actual notice and actual knowledge of said information.

18. Despite actual knowledge of the infestation of *Legionella pneumophila* and the defective water and/or air-conditioning system present at SCI Pittsburgh, Defendant DOC and Defendant CTI failed to properly sanitize, disinfect, and/or remediate the infestation. Defendant DOC and Defendant CTI further failed to properly maintain, fix, repair, and/or renovate the defects in the water and/or air-conditioning system. In doing so, Defendant DOC and Defendant CTI failed in their duty of care and/or were deliberately indifferent to the risk of serious injury, disease, or death to Dr. Mollura.

19. Prior to his death, Dr. Mollura provided medical care and treatment to individuals incarcerated at SCI Pittsburgh. In that capacity, Dr. Mollura made regular usage of and had regular contact with the air-conditioning and water system at SCI Pittsburgh.

20. In early August of 2016, Dr. Mollura began experiencing a dry cough and shortness of breath.

21. On or about August 3, 2016, Dr. Mollura completed his work at SCI Pittsburgh and left the facility.

22. On or about August 4, 2016, Dr. Mollura traveled to Orlando, Florida for his son's graduation. At that time, his shortness of breath progressively worsened.

23. On or about August 5, 2016, Dr. Mollura presented to Orlando Health hospital. Dr. Mollura demonstrated a wheezing cough and congestion in the left lung. A chest x-ray

revealed severe pneumonia of the left lung. When urinalysis tested positive for *Legionella* antigen, Dr. Mollura was diagnosed with Legionnaire's pneumonia.

24. The Legionnaire's disease process could not be arrested in Dr. Mollura and he died on August 8, 2016 from Legionnaire's disease.

25. At the time of his death, Dr. Mollura was 60 years of age. He is survived by his wife, Plaintiff Maria Mollura, and his four adult children: Lorraine DiNatale, Joseph G. Mollura, Steven M. Mollura, and David A. Mollura.

COUNT I
(Wrongful Death)

**Maria Mollura, Individually and as Administratrix of the Estate of Joseph Mollura,
Deceased, Plaintiff, v. Department of Corrections and
Capital Technologies, Inc., Defendants**

26. Plaintiff incorporates by reference and makes part of this Count all of the allegations contained in the preceding paragraphs of this Complaint as set forth above.

27. Plaintiff brings this action by virtue of 42 Pa.C.S.A. §8301 and Pa.R.C.P. 2202 to recover all damages of whatsoever nature to which Plaintiff is entitled under the laws of Pennsylvania governing Wrongful Death actions.

28. Defendant DOC and/or Defendant CTI, their respective agents, ostensible agents, servants and/or employees were negligent and careless in some or all of the following particulars:

- (a) In allowing and/or permitting a dangerous condition of real property to exist at SCI Pittsburgh, which Defendant DOC and/or Defendant CTI had under their care, custody, and control;
- (b) In allowing and/or permitting the real property of SCI Pittsburgh, which Defendant DOC and/or Defendant CTI had under their care, custody, and control, to be unsafe for activities for which it is regularly used, intended to be used, or reasonably foreseen to be used;

- (c) In creating a dangerous condition of real property by allowing the SCI Pittsburgh water system to accumulate and proliferate the *Legionella* bacteria;
- (d) In permitting a defective water system to exist in and about the premises and/or of the real property where Defendants knew that Dr. Mollura worked;
- (e) In failing to adequately treat the defective water system in and about the premises and/or of the real property where Defendants knew that Dr. Mollura and others regularly matriculated;
- (f) In permitting a dangerous condition of real property to exist whereby an individual could reasonably assume that it was safe to use and/or consume the water at SCI Pittsburgh when in fact a dangerous condition was present;
- (g) In permitting Dr. Mollura to be exposed to a dangerous condition of real property, that being the accumulation and proliferation of *Legionella pneumophila* at SCI Pittsburgh;
- (h) In failing to warn Dr. Mollura of the presence of the *Legionella* bacteria and defective water system on the premises and/or of real property;
- (i) In permitting a known danger of the real property and/or on the premises and grounds to exist;
- (j) In failing to keep the water at a proper temperature required to control and/or prevent the growth of *Legionella pneumophila*;
- (k) In failing to properly inspect and/or test the water system at sufficiently frequent intervals, including taking daily tests and temperatures in order to determine whether the water was safe, thereby creating a dangerous condition of real property;
- (l) In failing to timely sample its water to test for *Legionella pneumophila*;
- (m) In permitting the defective, dangerous and unsafe condition of real property to become and remain camouflaged and/or not otherwise obvious to Dr. Mollura;
- (n) In permitting the defective, dangerous and unsafe condition of real property to exist for an unreasonable period of time;
- (o) In failing to timely replace and/or repair defective parts of the water system and/or real property;

- (p) In failing to correct the defective, dangerous and unsafe condition of real property through sanitizing the water supply even after they had actual or constructive notice of said condition;
- (q) In failing to design, maintain, implement, and/or utilize a water system which prevented favorable conditions for the growth, colonization and/or proliferation of *Legionella pneumophila*;
- (r) In failing to properly and/or adequately remediate, disinfect, and/or decontaminate the water system known to have detectable and/or unsafe levels of *Legionella pneumophila*;
- (s) In failing to hire, employ, or retain personnel sufficiently qualified to inspect the water system;
- (t) In failing to train and/or supervise their personnel so that they would properly treat the defective, dangerous and unsafe condition of real property;
- (u) In failing to implement and/or follow a *Legionella pneumophila* prevention or monitoring program at its facility;
- (v) In creating a public nuisance and hazard of real property;
- (w) In failing to comply with statutes and ordinances regulating the maintenance of premises and the prevention of water-borne diseases;
- (x) In failing to comply with industry standards, including those promulgated by the organizations such as OSHA, ASHRAE, and the Allegheny County Health Department;
- (y) In failing to exercise the degree of care owed to Dr. Mollura;
- (z) As to Defendant CTI, in failing to make appropriate recommendations for the remediation and/or eradication of the infestation of *Legionella pneumophila*;
- (aa) As to Defendant CTI, in failing to timely correct, repair, and/or replace defective, malfunctioning, and/or inoperative parts of the water system, such as its valves, pumps, switches, and pipes; and
- (bb) As to Defendant DOC, in failing to accept and implement CTI's recommendations.

29. The negligent acts of Defendant DOC fall within the exception to governmental immunity pursuant to 42 Pa.C.S.A. §8522(4) in that the dangerous condition of real property, namely that the water system and/or air-conditioning units and/or Cooling Tower 1 colonized with *Legionella pneumophila* were a permanent fixture of the real property and were intended to remain as such. The dangerous condition made the real property unsafe for activities for which it is regularly used, intended to be used, or reasonably foreseen to be used. As such, the real property created a reasonably foreseeable risk of the kind of injury which Dr. Mollura sustained, and Defendant DOC had actual notice and actual knowledge or could be reasonably charged with actual notice and actual knowledge under the circumstances of the dangerous condition of the real property at a sufficient time prior to the Dr. Mollura's injuries to have taken measures to protect against the dangerous condition.

30. The sole and proximate cause of Dr. Mollura's death was the negligence and carelessness of Defendants and their agents, ostensible agents, servants and/or employees in the care, custody, and control of the real property of SCI Pittsburgh as is set forth herein.

31. By reason of the death of Dr. Mollura, his heirs have suffered pecuniary loss by reason of the expenses incurred for medical and hospital bills, funeral bills and other items connected with Dr. Mollura's injury and death.

32. By reason of the death of Dr. Mollura, his heirs have been deprived of the services, earnings, companionship, society and comfort of Dr. Mollura.

33. Dr. Mollura did not bring an action for his personal injuries during his lifetime.

WHEREFORE, Plaintiff, Maria Mollura, claims damages against Defendants in a sum in excess of the arbitrational limits of this Court and demands a trial by jury.

COUNT II
(Survival Action)

**Maria Mollura, Individually and as Administratrix of the Estate of Joseph Mollura,
Deceased, Plaintiff, v. Department of Corrections and
Capital Technologies, Inc., Defendants**

34. Plaintiff incorporates by reference and makes a part of this count all of the allegations contained in the preceding paragraphs of this Complaint as set forth above.

35. Plaintiff brings this action on behalf of the Estate of Joseph Mollura, Deceased, by virtue of 42 Pa.C.S.A. §8302 and other applicable statutes to recover all damages of whatsoever nature to which said estate is entitled under the laws of Pennsylvania governing Survival Actions.

36. Plaintiff claims on behalf of the said estate the damages suffered by the estate by reason of the death of Dr. Mollura, including the destruction of Dr. Mollura's earning capacity, the value of Dr. Mollura's household services, the expenses incurred for medical and hospital bills, funeral bills and other items connected with Dr. Mollura's injury and death, the pain and suffering of Dr. Mollura prior to his death, and all other damages permissible under Pennsylvania law as it relates to Survival Actions.

WHEREFORE, Plaintiff, Maria Mollura, Individually and as Administratrix of the Estate of Joseph Mollura, Deceased, claims damages against Defendants in a sum in excess of the arbitrational limits of this Court and demands a trial by jury.

JURY TRIAL DEMANDED

ROSEN LOUIK & PERRY, P.C.

Date: May 3, 2017

By: _____



Neil R. Rosen, Esquire
Andrew G. Rothey, Esquire
Attorney for Plaintiff

VERIFICATION

I, Maria Mollura, have read the foregoing COMPLAINT IN CIVIL ACTION. The averments and/or denials contained therein are true and correct to the best of my personal knowledge or information and belief.

This statement and Verification are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities, which statute provides that false statements are subject to criminal penalties.

Date:

5/2/2017



Maria Mollura

Supreme Court of Pennsylvania

Court of Common Pleas Civil Cover Sheet

Allegheny

County



For Prothonotary Use Only

Docket No.

TIME STAMP

The information collected on this form is used solely for court administration purposes. This form does not supplement or replace the filing and service of pleadings or other papers as required by law or rules of court.

Commencement of Action:

- ☒ Complaint ☐ Writ of Summons ☐ Petition ☐ Notice of Appeal
☐ Transfer from Another Jurisdiction ☐ Declaration of Taking

Lead Plaintiff's Name:

Marla Mollura

Lead Defendant's Name:

Pa. Department of Corrections

☐ Check here if you are a Self-Represented (Pro Se) Litigant

Name of Plaintiff/Appellant's Attorney: Neil R. Rosen, Esq., Rosen Louik & Perry, P.C.

Are money damages requested? ☒ Yes ☐ No

Dollar Amount Requested: ☐ within arbitration limits
☒ outside arbitration limits
(Check one)

Is this a Class Action Suit? ☐ Yes ☒ No

Nature of the Case: Place an "X" to the left of the **ONE** case category that most accurately describes your **PRIMARY CASE**. If you are making more than one type of claim, check the one that you consider most important.

TORT (do not include Mass Tort)

- ☐ Intentional
☐ Malicious Prosecution
☐ Motor Vehicle
☐ Nuisance
☒ Premises Liability
☐ Product Liability (does not include mass tort)
☐ Slander/Libel/Defamation
☐ Other:

MASS TORT

- ☐ Asbestos
☐ Tobacco
☐ Toxic Tort - DES
☐ Toxic Tort - Implant
☐ Toxic Waste
☐ Other:

PROFESSIONAL LIABILITY

- ☐ Dental
☐ Legal
☒ Medical
☐ Other Professional:

CONTRACT (do not include Judgments)

- ☐ Buyer Plaintiff
☐ Debt Collection: Credit Card
☐ Debt Collection: Other
☐ Employment Dispute: Discrimination
☐ Employment Dispute: Other
☐ Other:

REAL PROPERTY

- ☐ Ejectment
☐ Eminent Domain/Condemnation
☐ Ground Rent
☐ Landlord/Tenant Dispute
☐ Mortgage Foreclosure
☐ Partition
☐ Quiet Title
☐ Other:

CIVIL APPEALS

- Administrative Agencies
☐ Board of Assessment
☐ Board of Elections
☐ Dept. of Transportation
☐ Zoning Board
☐ Statutory Appeal: Other

Judicial Appeals

- ☐ MDJ - Landlord/Tenant
☐ MDJ - Money Judgment
☐ Other:

MISCELLANEOUS

- ☐ Common Law/Statutory Arbitration
☐ Declaratory Judgment
☐ Mandamus
☐ Non-Domestic Relations
☐ Restraining Order
☐ Quo Warranto
☐ Replevin
☐ Other: